Traffic Law Exceptions and Exemptions

1. Express exceptions and special permissions in the Road Transport Act, 2018

1.1 Certain transport vehicles exempt from route permits — Section 30

Section 30 provides that the Act's route-permit provisions do not apply to specified categories of transport vehicles, including:

- Transport vehicles owned by the Government or by a person/entity on behalf of the Government, within the statutory wording.
- Vehicles requisitioned by the Government for government work.
- Local-government-owned or contracted vehicles used to provide civic services.
- Vehicles used for disciplined forces, Fire Service and Civil Defence, or ambulance services.
- Vehicles engaged in carrying and burying dead bodies.
- Vehicles used to tow a disabled motor vehicle.
- Certain vehicles used by motor-vehicle manufacturers/builders, subject to conditions set by Gazette notification.
- Vehicles of government-recognised educational institutions.
- Vehicles used for training by a recognised motor-vehicle driving training centre.
- Mobile libraries, mobile dispensaries, mobile toilets and similar purposes.
- A transport vehicle that needs to take a different route because of a natural calamity to reach its destination.

Scope limit: this is a route-permit exemption only. It does not by itself remove requirements for a valid licence, registration, fitness, safe driving or compliance with traffic-control directions.

1.2 Approved special horns for emergency/public-duty vehicles — Section 45(5)

The Act provides special treatment for sound horns approved by the relevant authority for ambulances, fire-service vehicles, emergency-rescue vehicles and vehicles performing urgent public duties, notwithstanding specified ordinary sound-limit and quiet-area horn restrictions.

Scope limit: the provision concerns approved equipment and the specified restrictions; it should not be read as permission to use any horn in any situation.

1.3 Temporary permission to use a route outside the prescribed route — Section 28(2)

The competent authority, transport committee or an authorised government officer may grant temporary permission for a transport vehicle to operate outside its prescribed route for religious or sociocultural events or seasonal business purposes, subject to prescribed time limits and conditions.

This requires permission. A driver cannot simply choose another route and claim this exception.

1.4 Special permission for commercial use — Section 31(1)

The authority may permit certain special types of commercial activity using a motor vehicle that is otherwise exempt from the route-permit requirement. This is permission-based, not automatic.

1.5 Government-programme activity — Section 31(2)

The Act provides a specific exception for sales, transfers or promotional activities carried out under a government programme from the specified restriction on mobile commercial activity in a vehicle. The exact statutory conditions should be checked before relying on it.

2. Special licensing arrangements

Provision	Subject	Practical meaning
Section 7	Driving licence for a person with a disability	Special licensing provisions may apply; this is not a general exemption from holding an applicable licence.
Section 8	Driving licence for defence-force vehicles	Special provisions govern licences for motor vehicles of the defence forces.
Section 9	Foreign nationals	Specific licensing arrangements apply; the driver must meet the applicable requirements.

3. Emergency situations: limits of the exception

- **Ambulances and fire-service vehicles:** The Act expressly recognises certain emergency vehicles for route-permit exemptions and approved horns. These provisions do not automatically exempt them from every traffic rule.
- **Transporting an injured person to hospital:** Section 62 addresses prompt notification and medical assistance after a road accident. It does not expressly establish a general exemption from traffic offences for anyone transporting an injured person.
- **Natural calamity or route disruption:** Section 30 covers specified transport vehicles that need a different route because of a natural calamity. It is not a blanket exemption for all motorists facing congestion or an ordinary road closure.
- **Red lights, speeding and parking during emergencies:** No general statutory exemption for these situations was verified in the sources reviewed. The facts may matter, but an emergency should not be assumed to cancel a ticket automatically.
- **Police instructions or VIP convoys:** The legal effect depends on the applicable traffic-control provisions and any lawful order or authorised traffic-management arrangement. Status alone should not be assumed to excuse every offence.

4. Historical provision — do not treat as current law

The Motor Vehicles Ordinance, 1983, was repealed by the Road Transport Act, 2018. Some historical provisions in the old Ordinance addressed special circumstances involving emergency transport or supplies. Those provisions should not be relied on as current defences unless a corresponding provision is confirmed in the current law or a valid continuing instrument.

Practical warning: A repealed provision is not current law simply because an old PDF or website still displays it.

5. Quick reference table

Topic	Summary	Legal reference / limit
Route permit	Specified government, civic-service, emergency, educational, mobile-service and other vehicles; certain natural-calamity diversions.	Section 30; exemption is limited to route permits.
Approved emergency horns	Specified emergency or urgent public-duty vehicles with authority-approved horns.	Section 45(5); not a general horn-use exemption.
Temporary route deviation	Certain events or seasonal business, with prior temporary permission and conditions.	Section 28(2); permission required.
Special commercial use	Specific activities allowed by the authority.	Section 31; permission/conditions apply.
Emergency traffic violations	No blanket exemption verified for red lights, speeding or parking.	Check the exact current law and facts.

6. Official sources

- Bangladesh Laws — Road Transport Act, 2018 (full text): https://bdlaws.minlaw.gov.bd/act-print-1262.html
- Bangladesh Laws — Chapter 5: Transport committees and route permits: https://bdlaws.minlaw.gov.bd/act-1262/act-chapter-print-2120.html
- Government-hosted English PDF — Road Transport Act, 2018: https://objectstorage.ap-dcc-gazipur-1.oraclecloud15.com/n/axvjbnqprylg/b/V2Ministry/o/office-legislativediv/2024/12/c439d37a43d64896bff7c2b7490fcd21.pdf
- Bangladesh Laws — Motor Vehicles Ordinance, 1983 (historical; repealed): https://bdlaws.minlaw.gov.bd/act-654/act-chapter-print-913.html